

Amendment No. 1 to HB1909

Terry
Signature of Sponsor

AMEND Senate Bill No. 2585

House Bill No. 1909*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 4-29-248(a)(5), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 2. Tennessee Code Annotated, Section 8-50-117, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 3. Tennessee Code Annotated, Section 8-50-119(b)(1)(A), is amended by deleting "marital and family" wherever it appears and substituting "marriage and family".

SECTION 4. Tennessee Code Annotated, Section 33-1-101(20), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 5. Tennessee Code Annotated, Section 33-3-201(a)(2), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 6. Tennessee Code Annotated, Section 36-6-413(b)(5)(C)(iii), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 7. Tennessee Code Annotated, Section 52-1-101(14), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 8. Tennessee Code Annotated, Section 52-3-201(a)(2), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 9. Tennessee Code Annotated, Section 56-7-2401(a), is amended by deleting "marital and family" wherever it appears and substituting "marriage and family".

SECTION 10. Tennessee Code Annotated, Section 63-1-125(b)(1)(A), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 11. Tennessee Code Annotated, Section 63-1-201(2)(I), is amended by deleting "Marital and Family" and substituting "Marriage and Family".

SECTION 12. Tennessee Code Annotated, Section 63-11-302(6)(J), is amended by deleting the subdivision and substituting:

(J) Licensed marriage and family therapist or associate licensed marriage and family therapist.

SECTION 13. Tennessee Code Annotated, Section 63-11-409(b)(5), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 14. Tennessee Code Annotated, Section 63-22-101(a), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 15. Tennessee Code Annotated, Section 63-22-102, is amended by deleting "marital and family" wherever it appears in subdivisions (5), (6), and (7) and substituting "marriage and family".

SECTION 16. Tennessee Code Annotated, Section 63-22-103, is amended by deleting the section and substituting:

(a) The board shall license without examination an applicant for licensure as a marriage and family therapist who is licensed to practice independently and is in good standing in another state or territory if the applicant's qualifications meet the requirements for licensure under this part.

(b) The board may enter into a reciprocal agreement with another state that licenses marriage and family therapists.

(c) The board shall license by endorsement an applicant for licensure as a marriage and family therapist who is licensed to practice independently in another state or territory upon receipt of the following:

(1) A completed application for licensure by endorsement;

(2) Payment of all application fees;

- (3) Documentation of each license to practice marriage and family therapy that the applicant has held and the disciplinary status of each license;
- (4) Successful completion of the Tennessee jurisprudence examination;
- (5) Proof that the applicant is at least eighteen (18) years of age; and
- (6) Evidence satisfactory to the board of the applicant's good moral character and professional ethics.

SECTION 17. Tennessee Code Annotated, Section 63-22-106, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 18. Tennessee Code Annotated, Section 63-22-107(c), is amended by deleting "marital and family" wherever it appears and substituting "marriage and family".

SECTION 19. Tennessee Code Annotated, Section 63-22-110(c), is amended by deleting "marital and family" wherever it appears and substituting "marriage and family".

SECTION 20. Tennessee Code Annotated, Section 63-22-113, is amended by deleting the section and substituting:

(a) This part does not apply to:

(1) Activities and services of a student intern or trainee in marriage and family therapy who is pursuing a program of studies in marriage and family therapy at an accredited institution of higher learning, if such activities are performed under supervision and are part of a supervised program of study. Such person may use the titles "marriage and family therapy intern", "family therapy intern", or "student therapist"; or

(2) A person who is under a supervisory arrangement with an approved supervisor working toward independent licensure, and who is working under a community mental health center, as defined in § 33-1-101, residential or inpatient facility, intensive outpatient facility, or federally qualified health center. Such person may use the title "prelicensed marriage and family therapist" or a postgraduate degree designation.

(b) This part does not prohibit qualified members of other professional groups as defined by the board, including licensed clinical social workers, licensed psychologists, licensed psychological examiners, licensed senior psychological examiners, certified psychological assistants, psychiatric nurses, physicians, attorneys at law, or members of the clergy from performing or advertising that they perform the work of a marriage and family therapy nature consistent with the accepted standards of their respective professions, or prohibit alcohol and drug abuse counselors licensed pursuant to title 68, chapter 24, part 6, or operating under qualified supervision while seeking such certification from performing counseling consistent with the accepted standards of that profession.

SECTION 21. Tennessee Code Annotated, Section 63-22-114, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 22. Tennessee Code Annotated, Section 63-22-115, is amended by deleting subdivisions (a)(2) and (a)(3) and substituting:

(2) "Approved supervisor" means:

(A) A licensed marriage and family therapist, or other licensed mental health professional, who is independently licensed and an American Association for Marriage and Family Therapy-approved supervisor;

(B) A supervisor-in-training who is under the supervision of, and receiving mentoring from, a current American Association for Marriage and Family Therapy-approved supervisor; or

(C) A board-approved supervisor.

(3) "Board-approved supervisor" means a person who demonstrates to the board that the person has:

(A) At least five (5) years of full-time experience as an independently licensed marriage and family therapist with an unencumbered license, with at least the last two (2) years of experience completed in this state;

(B) Thirty (30) hours of instruction specific to the practice of marriage and family therapy supervision through a board-approved continuing education provider; and

(C) Completed six (6) hours of continuing education in supervision every two (2) years. Of the six (6) hours, at least three (3) hours must be relevant to ethics and the laws of this state governing the practice of marriage and family therapy. The hours required by this subdivision (a)(3)(C) are in addition to any other continuing education requirements for maintaining licensure;

SECTION 23. Tennessee Code Annotated, Section 63-22-115(a)(4), is amended by deleting the subdivision and substituting:

(4) "Licensed marriage and family therapist" means a person to whom an independent license to practice has been issued pursuant to this part, and whose license is in effect and not suspended or revoked at the time in question;

SECTION 24. Tennessee Code Annotated, Section 63-22-115(a)(5), is amended by deleting "marital and family systems" and substituting "marriage and family systems" and deleting "Marital and family" wherever it appears and substituting "Marriage and family".

SECTION 25. Tennessee Code Annotated, Section 63-22-115, is amended by deleting "marital and family" wherever it appears in subsections (a), (b), (e), and (g) and substituting "marriage and family".

SECTION 26. Tennessee Code Annotated, Section 63-22-121(b), is amended by deleting "marital and family" wherever it appears and substituting "marriage and family".

SECTION 27. Tennessee Code Annotated, Section 63-22-206(a)(4), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 28. Tennessee Code Annotated, Section 63-22-403, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 29. Tennessee Code Annotated, Section 63-22-404, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 30. Tennessee Code Annotated, Section 63-32-102, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 31. Tennessee Code Annotated, Section 68-1-101(a)(8)(C), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 32.

(a) Sections 1-15, 17-19, and 21-31 of this act take effect January 1, 2027, the public welfare requiring it, and applies to actions occurring, and licensure and license renewal applications submitted, on or after that date.

(b) Sections 16, 20, and 32 of this act take effect July 1, 2026, the public welfare requiring it, and applies to actions occurring, and licensure and license renewal applications submitted, on or after that date.